

25CMCP00214 25CMCP00214

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-24

Motion: PETITION FOR RELIEF FROM CLAIM STATUTE

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Case Number: 25CMCP00214 Hearing Date: August 24, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

XAPHEN ATOM QUEZADA, et al.,

Plaintiffs,

vs.

COUNTY

OF LOS ANGELES,

Defendant.

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CASE NO: 25CMCP00214

[TENTATIVE]

ORDER RE: PETITION FOR RELIEF FROM CLAIM STATUTE

Dept.

A

DATE:

August 24, 2026

TIME:

8:30 A.M.

PETITION

FILED: 11/24/2025

MOVING

PARTY: Petitioner Xaphen Atom

Quezada

RESPONDING

PARTY: Respondent County of Los Angeles

1. Background

This is a wrongful death action. Petitioner Xaphen Atom Quezada ("Petitioner") alleges that on October 20, 2024, Petitioner's father, decedent Heriberto Quezada ("Decedent"), was fatally struck by traffic while crossing the street at the area of Central Ave. and 123rd St. in Los Angeles County, CA (the "Roadway"). Petitioner alleges that Decedent's death was caused by the dangerous condition of the Roadway, as created and maintained by respondent County of Los Angeles ("County").

2. Discussion

Petitioner requests relief from the provisions of Government Code § 945.4, on the grounds that Petitioner's claims were not filed during the statutory period because of mistake, inadvertence, or excusable neglect and that Petitioner was a minor during the statutory period. In opposition, County argues that there was no mistake or excusable neglect and that the provision of Government Code § 946.6 extending the timeline for minors is only relevant where the minor themselves suffered damages or loss, and that Petitioner's claim is a derivative wrongful death claim.

Government Code § 911.2, subdivision (a) requires that a claim against a public entity relating to a cause of action for death or for injury to person or to personal property to be presented not later than six months after accrual of the cause of action, and a claim for any other cause of action to be presented not later than one year after accrual of the cause of action. Government Code § 946.6, subdivision (a) provides that "[i]f an application for leave to present a [late] claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from Section 945.4 [requiring a claim to be presented to a public entity before an action may be brought against the public entity]."¿

Petitioners must file the petition within six months after the application to the board is denied. (Gov. Code, § 946.6, subd. (b).) The court shall grant the petition if the court finds: (1) that the petitioner made the application to the board within a reasonable time not to exceed one year under Section 911.4, subdivision (b); (2) the application was denied or deemed denied; and (3) that one or more of the enumerated reasons apply. (Gov. Code, § 946.6, subd. (c).) One of those reasons is “[t]he failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim” if relief is granted. (Gov. Code, § 946.6, subd. (c)(1).) Another reason is if “[t]he person who sustained the alleged injury, damage, or loss was a minor during all of the time specified in Section 911.2 for the presentation of the claim.” (Id., subd. (c)(2).)

Respondent contends that Petitioner is not the person who sustained the alleged injury, damage, or loss. However, in a wrongful death action, the party bringing the claim based on their relationship with the decedent is the injured party for the purposes of Government Code § 946.6. (See *Carr v. State of California* (1976) 58 Cal.App.3d 139, 144-145.)

Petitioner’s application for leave to present a late claim was made to County on September 5, 2025, less than one year after the date of the incident. (Bazerkian Decl. ¶ 5.) This application was denied by notice of rejection on September 29, 2025. (Bazerkian Decl. ¶ 5.) Petitioner was a minor during the entire claims period and was still a minor as of the date of filing of the Petition on November 24, 2025. (Bazerkian Decl. ¶ 9.)

Under such circumstances, any contention of prejudice from County is immaterial. (*Williams v. Mariposa County Unified Sch. Dist.* (1978) 82 Cal.App.3d 843, 849.) As Petitioner has fulfilled the requirements for relief from the provisions of Government Code § 945.4, relief is mandatory. (Gov. Code § 946.6, subd. (c).) The court will therefore grant Petitioner’s petition for relief from the provisions of Government Code § 945.4.

3. Conclusion

Based on the foregoing, the court GRANTS Petitioner’s motion for relief from the provisions of Government Code § 945.4. Petitioner is

authorized to file suit on the cause of action to which their claim relates on or before September 23, 2026.

Petitioner is ordered to give notice.

IT IS SO ORDERED.

DATED: August 24, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court